# *KALYANI CAST -TECH LIMITED*

**(PT 62/9 Ground Floor Kalka Ji, New Delhi-110019)**

**CIN U26990DL2012PLC242760**

# *POLICY ON PREVENTION OF SEXUAL HARASSMENT OF WOMAN AT WORK PLACE*

***Approved by Board of Directors at its meeting held on October 17, 2022***

**OBJECTIVE**

Kalyani Cast Tech Limited ("KCTL") is committed to creating a safe work environment that is free from any form of sexual harassment and where all employees are treated with dignity and respect. KCTL is dedicated to maintain an environment which is free from coercion and intimidation.

KCTL shall adopt certain procedures and guidelines to govern cases against sexual harassment. The procedure has been provided below in KCTL's policy against sexual harassment ("Policy").

All allegations of sexual harassment shall be taken seriously by KCTL and shall be governed by this Policy.

This Policy extends to all employees of KCTL and is deemed to be incorporated in the service conditions of all employees and comes into effect immediately.

## 1. APPLICABILITY AND MODES OF PRESERVATION

Purpose of this policy is to provide protection against sexual harassment of women at workplace and the prevention and redressal of complaints of sexual harassment and matters related to it.

This policy extends to all employees including individuals coming to the workplace for employment or for any other purpose whatsoever including but not limited to visitors, vendors, contractual resources, seconders and applies to any alleged act of sexual harassment against persons at workplace, whether the incident has occurred during or beyond office hours.

**This policy does not prevent any aggrieved person from taking recourse to the law of the land.**

## 2. DEFINITIONS

- **"Aggrieved Individual"** means in relation to a workplace, a person, of any age, whether employed or not, who alleges to have been subject to any act of sexual harassment by the respondent and includes contractual, temporary employees and visitors.

- "**Complainant**" is any aggrieved individual (including a representative as more fully described under Rule 6 of the said Rules, if the aggrieved individual is unable to make a complaint on account of his/her physical or mental incapacity or death or otherwise) who makes a complaint alleging Sexual Harassment under this Policy.

- "**Employee**" as defined under the Act and means a person employed with the Company for any work on permanent, temporary, part-time, ad-hoc or daily wage basis, either directly or through an agent, including a contractor, who with or without the knowledge of the Principal employer, whether for remuneration or not, or working on a voluntary basis or otherwise, whether the terms of employment are expressed or implied and includes a co-worker, a contract worker, probationer, trainee, apprentice or called by any other such name.

- "**Employer**" means person who are responsible for management, supervision and control of the workplace including appointment/removal/termination of employees and will include 'Director and General Manager', 'Chief People Officer (CPO)' and 'Chief Operating Officer (COO).

- **"Internal Committee"** means and include an Internal Complaints Committee (hereinafter referred to as the "ICC").

- "**Member"** means a member of the ICC.

- "**Presiding officer**" means the presiding officer of the ICC and shall be a woman employed at a senior level at the workplace amongst the employees.

- '**Respondent"** means a person against whom a complaint of alleging sexual harassment has been made under this policy.

- "**Parties**" means collectively the complainant and the respondent.

- "**Sexual Harassment**" includes any one or more of the following unwelcome acts of behavior (whether directly or by implication):

A. Any unwelcome sexually determined behavior or pattern of conduct that would cause discomfort and/or humiliate a person at whom the behavior or conduct was directed namely -

(i) Physical contact and advances;
(ii) Demand or request for sexual favours;
(iii) making sexually coloured remarks or remarks of sexual nature about a person's clothing or body;
(iv) showing pornography;
(v) Any other unwelcome physical, visual, verbal or non-verbal conduct of sexual nature including but not limited to cat-call, wolf/finger whistle, vulgar/indecent jokes, letters, phone calls, text messages, e-mails, gestures etc.

Sexual harassment can involve a series of incidents or it can be a one-off occurrence.

B. The following circumstances, among other circumstances, if it occurs or is present in relation to connected with any act or behavior of sexual harassment may amount to sexual harassment:-

- Implied or explicit promise of preferential treatment in employment; or
- Implied or explicit threat of detrimental treatment in employment; or
- Implied or explicit threat about the present or future employment status; or
- Interference with work or creating an intimidating or offensive or hostile work environment for the person; or
- Humiliating treatment affecting any person's health or safety.

- "**Workplace**" means establishments, enterprises, institutions, offices, branches, premises, locations or units established, owned, controlled by the Company or places visited by the employees out of or during the course of employment including accommodation, transportation provided by the employer for undertaking such journey.

## 3. COMPOSITION OF THE INTERNAL COMPLAINTS COMMITTEE

Pursuant to the relevant provisions of the Act, an Internal Complaints Committee (ICC) has been constituted to prevent instances of sexual harassment and to receive and effectively deal with complaints pertaining to the same, an "Internal Complaint Committee" is constitutes at each location. The details of the committee is notified to all employees at the location (Workplace).

- ✓ Presiding officer: a woman employed at a senior level in the organization or work place.
- ✓ At least 2 members from amongst employees
- ✓ One External Member, familiar with the issues relating to sexual harassment.
- ✓

| Sl. No. | Name of the person | Designation | Email id |
|---|---|---|---|
| 1 | Ms. Jayashree Kumar | Executive Director | kumarjayashree27@gmail.com |
| 2 | Amit Kumar | Chief Financial Officer | Amitsehrawat.accts@gmail.com |
| 3 | Sandeep Tizaria | | sandeeptizaria@gmail.com |
| 4 | Pramila Sharma | External Member | Pramilasharma2011@gmail.com |

The committee is responsible for:

- Receiving complaints of sexual harassment at the workplace
- Initiating and conducting inquiry as per the established procedure
- Submitting findings and recommendations of inquires
- Coordinating with the employer in implementing appropriate action
- Maintaining strict confidentiality throughout the process as per established guidelines
- Submitting annual reports in the prescribed report

The term of the committee members is 3 years only.

## 4. COMPLAINT OF SEXUAL HARASSMENT

- ➢ Any aggrieved individual may make in writing, a complaint of sexual harassment to the Human Capital (HC) Department (through respective Lines of Service HC) or through Company's Ethics Office (email id: ethicsoffice@xa.pwc.com or Help Line No: 1800 419 0502) within a period of three (3) months from the date of incident and in case of more than one incident, within a period of three (3) months from the date of last incident. Complaints arising of incidents more than three (3) months old shall not be accepted.
- ➢ However, the ICC may, for reasons to be recorded in writing, extend such time limit of filing complaint up to further 3 months, if it is satisfied that bonafide circumstances prevented the aggrieved individual from filing complaint within the time limit mentioned in point (1) hereinabove. The complaint should clearly mention name and available details of both the aggrieved person and the respondent. Anonymous or pseudonymous complaints will not be investigated.
- ➢ Where the aggrieved individual is unable to make the complaint on account of her/his physical or mental incapacity or death or otherwise, his/her representative, as more fully described under Rule 6 of the said Rules, may make a complaint.
- ➢ The HC Department or Ethics Office will officially forward the complaint to the Presiding Officer of ICC within seven (7) days from the date of making of the complaint.
- ➢ The complainant shall submit six copies of the complaint accompanied by available supporting documents and relevant details concerning the alleged act of sexual harassment(s) including names and address of witnesses, if any which the complainant believes to be true and accurate.

## 5. REDRESSAL PROCESS

### 5.1 *Conciliation*

Before the ICC initiates an inquiry, the complainant may request the ICC to take steps to resolve the matter through conciliation provided no monetary settlement shall be made as basis of conciliation. If a settlement has been so arrived, the ICC shall record the same and forward the same to the Employer and provide copies of the settlement to the aggrieved individual and the respondent. In such cases, no further inquiry shall be conducted by the ICC.

### 5.2 *Inquiry*

(i) In case where a settlement is not feasible or could not be arrived at through Conciliation (ref clause 6.1 above), the ICC will conduct an inquiry into the complaint. Additionally an inquiry may also be initiated if the aggrieved person informs the ICC that any terms of settlement (ref clause 6.1 above) has not been complied with by the respondent.

(ii) The ICC within 7 (seven) working days of receiving the complaint shall forward one copy thereof to the respondent for obtaining a response.

(iii) The respondent within 10 (ten) working days of receiving the complaint shall file his/her reply to the complaint along with list of supporting documents, names and addresses of witnesses.

(iv) The ICC shall consider the reply from the respondent and initiate an inquiry. The complainant or the respondent to the complaint shall not be allowed to bring any legal practitioner to represent them at any stage of the proceedings before the ICC. ICC shall hear both the complainant and the respondent on date(s) intimated to them in advance and the principles of natural justice will be followed accordingly.

(v) In the event of failure to attend personal hearing before ICC by the complainant or the respondent on three consecutive dates (intimated in advance), the ICC shall terminate the inquiry proceedings or give an ex-parte decision. However, the ICC shall serve a notice in writing to the party (ies), 15 (fifteen) days in advance, before such termination or the ex-parte order.

(vi) The inquiry process shall be completed maximum within the period of 90 (ninety) days from the date of receipt of the complaint.

(vii) The ICC within 10 (ten) days from the date of completion of inquiry shall provide a report of its findings to CPO and Director & General Manager and such report shall also be forthwith made available to the complainant and respondent.

(viii) Where the conduct of Sexual Harassment amounts to a specific offence under the Indian Penal Code4 (45 of 1860) or under any other law; it shall be the duty of ICC to immediately inform the complainant of his/her right to initiate action in accordance with law with the appropriate authority, and to give advice and guidance regarding the same. Any such action or proceedings initiated shall be in addition to proceedings initiated and /or any action taken under this Policy.

### 5.3 *Interim relief*

During pendency of the inquiry, on a written request made by the complainant, the committee may recommend to the employer to:

- Transfer the aggrieved individual or the respondent to any other workplace; or
- Grant leave to the aggrieved individual of maximum 3 months, in addition to the leave he/she would be otherwise entitled; or
- Grant such other relief to the aggrieved individual as may found to be appropriate; or
- Restraint the respondent from reporting on the work performance of the complainant.

Once the recommendation of interim relief are implemented, CPO shall inform the committee regarding the same.

### 5.4 *Prohibition on disclosure of information*

This policy and the law prohibits any person including ICC Members from publishing, communicating or making known to the public, press and media in any manner, contents of the complaint, the identity and addresses of the aggrieved person, respondent and witnesses, any information relating to conciliation and inquiry proceedings, or recommendations of the ICC during the proceedings under the provisions of the Act. Any violation thereto shall also be subject to applicable disciplinary action as outlined in Employee Handbook. Further CPO shall impose monetary sanctions as per provisions of the Act and Rules.

### 5.5 *Protection to Complainant*

The Company is committed to ensuring that no employee who brings forward a harassment concern is subject to any form of reprisal. Any reprisal will be subject to disciplinary action. The Company will ensure that the victim or witnesses are not victimized or discriminated against while dealing with complaints of sexual harassment.

However, anyone who abuses the procedure (for example, by maliciously putting an allegation knowing it to be untrue and/or produces any forged or misleading document) will be subject to applicable disciplinary action.

### 5.6 *Appeal*

Any person aggrieved by the recommendation of ICC may prefer an appeal under the relevant provisions of the Act and Rules.

### 5.7 *Disciplinary Proceedings*

Pursuant to written recommendation of CPO on the basis of report and findings of ICC and subject to the final outcome of the appeal proceedings, if any, (ref. clause 6.6 above) necessary disciplinary proceedings may be initiated against the respondent in terms of the applicable provisions of Employee Handbook of the Company.

### 5.8 *Savings and Repeal*

Kalyani Cast-Tech Limited is committed to ensuring that no employee who brings forward a harassment concern is subject to any form of reprisal. Any reprisal will be subject to disciplinary action. KCTL will ensure that victim or witnesses are not victimized or discriminated against while dealing with complaints of sexual harassment.

However, anyone who abuses the procedure with established malicious intent will be penalized as outlined above.

## ANNEXURE – 1

**Sections of the Indian Penal Code (IPC) – Sexual Harassment and Punishment for Sexual Harassment**

Under the Indian Penal Code, the newly introduced Section (Section 354A) which deals with Sexual Harassment has made this a 'cognizable offense' i.e. a person charged with Sexual Harassment may be arrested without a warrant.

(1) A man committing any of the following acts:
- (i) physical contact and advances involving unwelcome and explicit sexual overtures; or
- (ii) a demand or request for sexual favours; or
- (iii) showing pornography against the will of a woman; or
- (iv) making sexually coloured remarks, shall be guilty of the offence of sexual harassment.

(2) Any man who commits the offence specified in clause (i) or clause (ii) or clause (iii) above, shall be punished with rigorous imprisonment for a term which may extend to three years, or with fine, or with both.

(3) Any man who commits the offence specified in clause (iv) above shall be punished with imprisonment of either description (i.e. either simple or rigorous) for a term which may extend to one year, or with fine, or with both.

In addition to Section 354A set out above, acts of Sexual Harassment may also constitute other offenses under IPC including Section 354 (assault or criminal force to woman with intent to outrage her modesty), Section 354C (Voyeurism), Section 354D (Stalking), Section 375 and 376 (Rape) and Section 509 (word, gesture or act intended to insult the modesty of a woman) of the IPC.

Jayashree Kumar
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# KALYANI CAST TECH LIMITED

*(Formerly Known As; "**Kalyani Cast Tech Private Limited**")*

## *GRIEVANCE REDRESSAL PROCEDURE*

Reporting of Complaint through HC or Ethics Office

HC or Ethics Office to officially forward the complaint to Presiding Officer of ICC within 7 days from the date of making complaint

Conciliation (on request of the aggrieved person).

No settlement is requested and/or arrived through conciliation;
OR
Terms of settlement not complied by Respondent

ICC examines the allegation and if the allegation falls under the purview of sexual harassment (incidents not exceeding 3 months) further investigation is conducted.

Settlement is arrived, recorded by ICC and is forwarded to Employer

ICC forwards copy of complaint to Respondent within 7 working days of receiving such complaint.

Copy of settlement award is sent to Complainant and Respondent

Respondent to file reply to the complaint within 10 working days of receiving of the complaint.
Both Complainant and Respondent are asked to present their case before ICC

No further inquiry to be initiated by ICC.

ICC conducts a detailed investigation with the accused and other individuals. ICC to complete the inquiry maximum within 90 days of receipt of complaint.

End of Process

Based on the report/ findings of ICC, disciplinary action may be recommended by CPO against the accused.

The ICC submits a report along with its findings to the CPO and Director & GM– within 10 days of completion of inquiry.

Any person aggrieved by the recommendation of ICC may prefer an appeal under the relevant provisions of the Act and Rules of 2013.

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